



Tort Law (9th edn)

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Abstract

This chapter discusses occupiers' liability, which deals with the risks posed, and harms caused, by dangerous places and buildings. In such cases, the occupier of the premises may be liable where a person who comes onto their land is injured in or by unsafe premises if the occupier has not taken reasonable care to ensure that those entering are safe. The general principles of negligence have been incorporated into, and modified by, statute in the form of the Occupiers' Liability Acts 1957 and 1984. Although the Acts define the circumstances in which a duty of care will be owed (and tell us something as to its extent, as well as matters relating to its discharge and limitation), questions of breach and causation still need to be established by reference to the ordinary principles of negligence.

Keywords: Keywords, liability, tort law, negligence, Occupiers' Liability Act 1957, Occupiers' Liability Act 1984

Problem question

Read this problem question carefully, and keep it in mind while you are working through the chapter that follows. At the end of the chapter, you will be able to apply what you have learnt to the problem question and advise the relevant parties.

'Camden Cool', an after-school youth club run by the local authority, is holding an open day to raise funds for the club. One of the main attractions is a large bouncy castle supplied, erected and supervised by HorseRack Castles, a small local company. Grimble and Heike are the first to try it out. They both suffer minor cuts and bruises when the castle breaks free from its moorings and lifts into the air. It later turns out that it had not been appropriately tethered to the ground. Unfortunately,

despite assuring Cameron, the club's youth worker, when he phoned to book the castle, that they had the necessary documentation, HorseRack Castles' public liability insurance had expired two months before the accident.

In the chaos that follows, Iris (Grimble's sister) wanders off alone. She is too young to be a member of the club and so doesn't know her way around the buildings. She is seriously injured when she falls down a flight of stairs after going through a door marked 'Private: No Unauthorised Entry'.

Meanwhile Otto and Bill (who are members of the club) have sneaked off to play football. After a particularly poor shot at goal their ball lands on a flat roof. Although they know the roof is 'out of bounds', as everyone is busy at the open day, they decide to climb onto the roof to retrieve it. As they do so one of the skylights breaks. Bill falls through the roof hitting his head hard, causing him to lose his hearing.

Advise the parties of any claims they may have under the Occupiers' Liability Acts 1957 and 1984.

11.1 Introduction

Consider the following examples:

- *While on a picnic with some friends, a student dives into a lake to cool off. Unfortunately, he misjudges his dive into the shallow water and, as a result, hits his head on the lake bed and breaks his neck.*
- ↵ *A shopper slips on some spilt milk in the dairy aisle of his local supermarket, injuring his back and ruining his new suede jacket. The warning sign had been moved by another shopper to get to the food on the shelves.*
- *A dinner guest trips over a child's toy left at the top of a flight of stairs and tumbles to the bottom, twisting her ankle.*
- *On his way home from a night out, a student trips over an uneven paving stone on the driveway leading to his halls of residence.*

Occupiers' liability deals with the risks posed, and harms caused, by dangerous places and buildings. In such cases, similar to those described above, the occupier of the premises—broadly understood to include not only buildings but also driveways, fire escapes and so on—may be liable if they have not taken reasonable care to ensure that those entering their premises are safe. What makes these claims distinctive is that the general principles of negligence (whereby if a breach of duty has caused injury, liability will usually follow) have been incorporated into, and modified by, statute in the form of the Occupiers' Liability Acts 1957 and 1984.¹

This statutory intervention was a response to the harshness and complexity of the common law, whereby the scope of the duty owed by the occupier varied according to the circumstances in which the claimant came on to the premises. Those who were on the premises by virtue of a contract (e.g. a plumber coming to fix a leaking tap) were owed a higher standard of care than so-called 'invitees' (e.g. a shopper), or a friend the occupier had invited round for dinner, who was merely a 'licensee'. Although they all fared better than 'uninvited' persons or trespassers who, until *British Railways Board v Herrington* [1972], were owed no positive duty of care at all; occupiers were simply under an obligation not to deliberately or recklessly cause trespassers harm (*Edwards v Railway Executive* [1952]).

Pause for reflection

Despite the enactment of the 1957 Act and, more particularly, its companion the 1984 Act, Richard Buckley argues that the imposition of liability on occupiers remains 'an aspiration rather than an accurate statement of contemporary law'.² More recently, this traditional reluctance to impose liability—usually relating to a desire to leave landowners alone to enjoy their land as they wish—has been given a contemporary twist. The imposition of liability has been framed as an attack on the liberties of both individuals who choose to engage in dangerous pastimes at their own risk *and* those who wish to simply enjoy the countryside and other public spaces. Consider, for example, the following extract from the speech of Lord Hobhouse in *Tomlinson v Congleton Borough Council* [2003] in which he mirrors the concerns of many about the effects of 'an unrestrained culture of blame and compensation':

[I]t is not, and should never be, the policy of the law to require the protection of the foolhardy or reckless few to deprive, or interfere with, the enjoyment by the remainder of society of the liberties and amenities to which they are rightly entitled. Does the law require that all trees be cut down because some youths may climb them and fall? Does the law require the coastline and other beauty spots to be lined with warning notices? Does the law require that attractive waterside picnic spots be destroyed because of a few foolhardy individuals who choose to ignore warning notices and indulge in activities dangerous only to themselves? The answer to all these questions is, of course, no. (at [81])

Do you agree with Lord Hobhouse? Think again about the purposes of tort law, contrasting the idea of corrective justice and its focus on individual responsibility and fault with the concerns of providing compensation and distributing losses across the community.³

Though there are now just two categories of visitor—lawful and unlawful—it remains important to identify from the outset which category the person who has been injured falls into as this will determine which of the OLAs applies.

- (1) The 1957 Act—covers visitors (including invitees and licensees at common law and contractual visitors) (ss 1(2), 5).

- (2) The 1984 Act—covers 'persons other than the occupier's visitor' or non-visitors (typically trespassers) (s 1(1)(a)).

There is one further point to note here. Although the Acts define the circumstances in which a duty of care will be owed and tell us something as to its extent, as well as matters relating to its discharge and limitation, when determining whether the duty has been breached and whether this breach caused the claimant loss we revert back to the ordinary principles of negligence.

11.2 The Occupiers' Liability Act 1957

The 1957 Act provides that an occupier owes a duty of care to visitors in respect of dangers posed by the state of the premises or by things done or omitted to be done on them (s 1(1)). In line with its objective to simplify the common law, the 1957 Act abolishes the various categories of visitor (and hence the varying duties owed to contractors, licensees and (implied) invitees) and provides that all lawful entrants should be owed the same common duty of care in respect of personal injury and property damage suffered on the premises (s 2(1)).⁴ The Act applies only to injuries suffered on the occupier's premises; if the injury is suffered outside their premises then there can be no claim on the basis of occupiers' liability, though, of course, a claim may lie under the ordinary principles of negligence, in the tort of nuisance (if there is an unreasonable interference with land) or under the rule in *Rylands v Fletcher* [1868] (if the damage is caused by the escape of a dangerous thing).⁵

p. 316 11.2.1 When is a duty owed?

Under the 1957 Act an *occupier* owes a common duty of care to all *visitors* who suffer injury on their *premises* (s 1(1)). It also states that occupiers and visitors are to be defined in the same way as at common law (s 1(2)).

Pause for reflection

There is some ambiguity as to the scope of the 1957 Act.⁶ The reference in section 1(1) to 'dangers due to the state of the premises *or to things done, or omitted to be done on them*' and in section 2(2) to 'a duty to take such care as in all the circumstances of the case is reasonable to see that the visitor will be reasonably safe *in using the premises* for the purposes for which he is invite or permitted by the occupier to be there' (emphasis added) has led to debate as to whether the Act extends the occupier's duty to include injuries caused by activities which are taking place on their premises (an 'activity' duty) or whether it is limited to injuries caused by the static condition of the premises themselves (an 'occupancy' duty).⁷

Most now agree that section 1(1) of the 1957 Act *only* applies to dangers posed, and harms caused, by the condition of the premises (though these may be rendered dangerous by virtue of some activity that has previously taken place on them). The Act has no application where a claimant is injured by an

activity that is happening on the defendant's premises. In *Bottomley v Todmorden Cricket Club* [2003], for example, the claimant was injured when helping to set up a firework display. As his injuries arose from activities conducted on the defendant's land rather than due to the state of the land itself, his claim under the 1957 Act failed.⁸ This, Buckley argues, is the better view of the scope of the 1957 Act: 'All activities which take place do so *somewhere*, and the law relating to occupiers' liability would be extraordinarily wide if it were expanded to include all the activities which a defendant happens to carry out on his land'.⁹

Of course, restricting claims under the 1957 Act to harms caused by the condition of the premises doesn't prevent a claim being brought in negligence for activities or actions that have taken place on them. As Brooke LJ noted in *Bottomley*, there is likely to be little difference, if any, between the duty owed under the 1957 Act and that under the ordinary principles of negligence (at [42]). One example of this are claims brought by one visitor for injuries caused by another. While previously an occupier has been liable to a visitor for the harm caused by another visitor under the 1957 Act (see e.g. *Cunningham v Reading Football Club Ltd* [1992] where the defendant was found to be in breach of their 'occupancy' duty, the dilapidated state of the premises having allowed football hooligans to break off bits of concrete to use as missiles one of which had hit the claimant), it is more likely now that in such circumstances the occupier will owe the a duty at common law in parallel with the 'occupation' duty under the 1957 OLA. As Smith LJ noted in *Everett v Comojo (UK) Ltd (t/a The Metropolitan)* [2011]:

It would be surprising if management could be liable to a guest who tripped over a worn carpet and yet escape liability for injuries inflicted by a fellow guest who was a foreseeable danger—for example in that he had previously been excluded on account of his violent behaviour and who on this occasion had been allowed in carrying an offensive weapon. (at [33])

In order to establish when a duty of care is owed it is necessary to look to both the 1957 Act and the case law for answers to the following questions.

- (1) Who is an occupier?
- (2) Who is a visitor?
- (3) What are premises?

11.2.1.1 Occupiers: 'Control of premises'

The duty imposed by the 1957 Act is owed by those in occupation of premises. Occupation is different from ownership; an occupier need not be the owner of the premises and nor is the owner necessarily the occupier. Neither is occupation simply a matter of who is physically present on the premises. Rather, the occupier is the

person who has, or is able to exercise, a sufficient degree of *control* over the premises (s 1(2)).¹⁰ Importantly, there may be more than one occupier at any given time. For example, a landlord and tenant may, depending on the circumstances, both be considered occupiers for the purpose of the 1957 Act.

***Wheat v Lacon & Co Ltd* [1966] AC 552 (HL)**

The defendants, Lacon & Co brewery, had let their public house to Mr Richardson to manage under a service agreement. They had also given Mr Richardson and his wife permission (on an informal basis) to live on the first floor of the public house and to rent the other rooms to paying guests. The claimant's husband, Mr Wheat, was fatally injured after falling down a flight of poorly lit stairs while staying at the pub. The light bulb at the top of the stairs had been removed, which meant that he was unable to know when he had reached the last step and was unable to see that the handrail finished three steps short of the end of the staircase. The question for the court was whether the brewery (who owned the public house) was an occupier for the purposes of a claim under the 1957 Act. (A claim in negligence against Mr and Mrs Richardson had failed.)

The House of Lords held that *both* the brewery and Mr and Mrs Richardson were occupiers for the purposes of the 1957 Act and, as such, owed a common duty of care to the claimant (and other visitors). The brewery, by simply granting a concession to allow Mr and Mrs Richardson to occupy the first floor, had not relinquished complete control of the premises:

In order to be an 'occupier' it is not necessary for a person to have entire control over the premises. He need not have exclusive occupation. Suffice that he has some degree of control. He may share the control with others. (Lord Denning at 578)

However, on the facts, neither party had fallen below the standard of care required of them. The fact that the stairs had a short handrail did not, in itself, make the stairs unreasonably hazardous and nor were they responsible for the actions of the stranger who had plunged the stairs into darkness by removing the light bulb, shortly before Mr Wheat attempted to walk down them.

Wheat v Lacon demonstrates that an occupier need not have actual physical possession of the premises. Indeed one may be an 'occupier' for the purposes of the 1957 (and 1984) Act despite never having resided in or physically occupied the premises. For instance, in *Harris v Birkenhead Corporation* [1975], as part of a slum clearance programme, a tenant was served with a compulsory purchase order, which stated that the corporation would enter and take possession of the property a fortnight after the notice was served. The tenant moved out. Three months later the corporation had still not secured the property despite knowing that vacant properties in the area were often vandalised. As a result, vandals had broken down the front door and caused considerable damage inside the property, including removing the glass from a second-floor window. The claimant (a 4-year-old girl), who had entered the property through the damaged door, fell out of the

window, suffering severe brain damage. The Court of Appeal held that even though the corporation had never been to the premises, they nevertheless were the occupiers as soon as the previous tenant had left. They had control over the property and, though they did not exercise it, the ability *and duty* to secure it.

Liability under the Defective Premises Act 1972

Typically, a landlord who has leased out premises will not have retained sufficient control to be treated as an occupier for the purposes of the OLAs. In such situations, a tenant who suffers an injury as a result of a defect in the premises they are renting will have no claim under the 1957 Act; there is no 'occupier' (other than themselves) to sue. Nor does the common law offer much protection in such circumstances (*Cavalier v Pope* [1906]; *Bottomley v Bannister* [1932]).

This gap is addressed by section 4 of the Defective Premises Act 1972.¹¹ Where a lease imposes on the landlord an obligation in respect of the maintenance and repair of the property, the landlord will be held to owe a duty of care to all those who might reasonably be expected to be affected by any defects in the state of the premises, so long as (a) the landlord knows or *ought* to have known of the relevant defect and (b) the defect is one which the landlord should have remedied by virtue of the obligation to repair imposed by the lease. Moreover, the duty is owed not only to the tenant, but also to others who may foreseeably be affected by defects, such as partners and other family members (s 4(1)).

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11.2.1.2 Visitors: By invitation or permission only

An occupier only owes a duty under the 1957 Act to those they have invited or have (or are treated as having) given permission to enter or use the premises (s 1(2)).¹² The key question is then: did the claimant have express, or implied, permission to be on the premises?

Such permission is rarely unlimited. As Scrutton LJ notes: 'When you invite a person into your house to use the staircase, you do not invite him to slide down the banisters' (*The Calgarth* [1927] at 110).¹³ By limiting the extent of the permission they give to a visitor, an occupier can restrict the duty they owe to them. For example, they might place restrictions on the time a visitor can spend on their premises (e.g. opening hours), the purposes for which they can use it, or limit their permission to particular parts of the property. If a visitor goes beyond what they have been invited or given permission to do at that point, and to that extent, they will cease to be treated as a visitor and will fall outside the provisions of the 1957 Act—although in these circumstances the 1984 Act will apply.

Spearman v Royal United Bath Hospitals NHS Foundation Trust [2017] EWHC 3027 (QB)

The claimant, James Spearman, had been taken to hospital by ambulance after suffering from a hypoglycaemic attack. The claimant had a phobia of hospitals. Within 15 minutes, he had left the emergency department of the hospital, climbed five flights of stairs to a flat roof, climbed over a protective barrier and either fallen or jumped into a courtyard below where he suffered a severe traumatic brain injury and multiple fractures including fractures to his lower limbs, sternum, ribs, lumbar spine and left wrist, leaving him dependent on others for care and assistance with all activities of daily living.

The question for the court was whether Spearman a 'visitor' (and so owed a duty under the 1957 Act) or a 'trespasser' (and so falling within the more limited remit of the OLA 1984) at the time of the accident? Interestingly, the judge held that—despite his actions in leaving the emergency department and making his way up two flights of stairs and onto the roof—he remained a visitor:

↵ In my judgment whether a person is or is not a trespasser is not solely determined by whether the place where they are is or is not an 'authorised' place. A person's state of mind and intention is an important additional factor. If a patient, who is a lawful visitor to a hospital (whether the Emergency Department or any other department) has finished his or her treatment and is leaving, he or she does not cease to be a visitor in general until they leave the hospital premises. The position may be different if they deliberately enter an area marked 'no entry', or 'private' or know that they are entering a part of the hospital where they have no right to be. But if the patient simply makes a mistake and goes the wrong way, it could not possibly be suggested that such a person was now a trespasser.¹⁴ So here, intending to leave the Emergency Department, Mr Spearman, in his confused state of mind, thought (wrongly but honestly) that he needed to go upstairs to get out and, indeed, go over the barrier to get out. His belief meant that he remained a lawful visitor and, in my judgment, he did not become a trespasser at any time material to this case. Just as, for Goddard LJ in *Gould's [v McAuliffe [1941]]* case, it was determinative that 'there was nothing to show that an invitee to this garden ought not to go through the gate in question', so here, the lack of any notice over door 1 and the lack of any lock on door 1 had the same effect. ... [T]he suggestion that the mere act of climbing over the wall, not being an act covered by the general permission to be on the site as a patient nor being part of the permission given by the defendant to patients leaving the site after treatment, was enough to convert the claimant in that case from being an invitee or visitor to being a trespasser is too simplistic as it fails to take account of the state of mind of the claimant ... [T]he claimant was mentally disturbed and did what he did as a result of a genuine and honest mistake, made in his state of confusion, it being wholly foreseeable that confused and mentally unstable patients would be part of [the] cohort of visitors to the department. (at [56])

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Finding the hospital liable (both in breach of their duty under the 1957 Act and a 'superimposed duty at common law' (at [75])), the judge concluded the hospital 'had failed to take reasonable steps to ensure that the premises were reasonably safe for him as a vulnerable patient who was confused and mentally unstable at the time that he was in the emergency department of the hospital' (at [75]).¹⁵

A person may be a visitor for some purposes and not for others depending on the scope of the permission granted by the occupier (compare e.g. *Darby v National Trust* [2001] and *Tomlinson*).

The occupier may change the terms of their permission and even revoke it entirely while the visitor is on the premises, changing the status of the 'visitor'. However, to be effective, this must be done in a way that is obvious to the visitor. A rather extreme example of this is provided by *Snook v Mannion* [1982] where a motorist told the policeman who had followed him up his driveway in order to breathalyse him to 'f**k off'.

p. 321 The court held that these words—which were taken to refer to the policeman's presence as well as his attempts to breathalyse the motorist—were not sufficient to revoke the licence usually implied to allow people to use a driveway to approach the house on legitimate business. In the same way, notices merely stating 'keep out' or 'private' may also not be sufficient.

11.2.1.3 Premises: Including 'any fixed or moveable structure'

Under the 1957 Act the definition of premises extends to 'any fixed or movable structure, including any vessel, vehicle or aircraft' (s 1(3)). Clearly this broad interpretation of premises not only includes buildings, driveways, fire escapes and other real property but also encompasses less permanent structures such as scaffolding or a derelict boat left on a council estate (see e.g. *Jolley v Sutton London Borough Council* [2000]; *Gwilliam v West Hertfordshire Hospitals NHS Trust* [2002]).

11.2.2 The standard of care

Under the 1957 Act, an occupier owes a positive duty to act to take 'such care as in all the circumstances of the case is reasonable to see that the visitor will be reasonably safe in using the premises for the purposes for which he is invited' (s 2(2)). The first thing to note is that it is the *visitor*, not the premises, that must be reasonably safe. The common law duty of care is not owed 'in the abstract' but by particular defendants to particular claimants (*Lewis v Six Continents* [2005] at [24]). Thus, where the occupier is aware of a particular vulnerability of the visitor (as for example in *Spearman*), and can reasonably be expected to take steps to guard against it, their duty of care will be higher. This was illustrated in *Pollock v Cahill* [2015] in which the claimant, who was blind, suffered serious brain and spinal injuries after falling out of an open second-floor window while staying at his friends' house:

the reference to 'such a visitor' [in s 2(3) of the OLA 1957] requires the occupier to have regard to any known vulnerability ... If [the claimant] had been a sighted person, the open window would not have rendered the premises unsafe. It was the fact that he was blind that made them so. [The defendant] was fully aware of his position ... [and] failed to discharge the common duty of care they owed as occupiers. The open window was a real risk to [the claimant]. [The defendants] created that risk. They ought to have appreciated the risk and taken steps to prevent it by keeping the window closed or by warning [the claimant] about it with particular reference as to the extent of the drop from the window. (Davis J at [51], [53])¹⁶

Secondly, the occupier's duty only applies for the purposes for which the visitor was invited onto the premises. The extent of the occupier's permission may be express or implied. In *Harvey v Plymouth City Council* [2010], the claimant, who was 21 at the time, was seriously injured after falling down a 5½-metre drop, landing on concrete, while seeking to evade a taxi fare while drunk at the end of a night out. The land was owned by the council. The claimant had run over a grassed area, though a gap in some bushes and over a small chain fence, which had not been repaired. The Court of Appeal held that the claimant was a visitor.¹⁷

p. 322 ↪ The council, through their awareness that people used the gap in the bushes, had implied permitted people to use the grassy area and, as a result, a duty to ensure it was safe for this purpose and protect its licensees against the risk of a 5-metre fall. However, this did not extend to the circumstances of the case. Carnwath LJ continued:

It is clear that the duty under the 1957 Act does not extend beyond the scope of the activities for which the licence has been expressly or impliedly given ... When a council licenses the public to use its land for recreational purposes, it is consenting to normal recreational activities, carrying normal risks. An implied licence for general recreational activity cannot, in my view, be stretched to cover any form of activity, however reckless.¹⁸ (at [22], [27])

Finally, the occupier is not under 'an obligation to ensure the safety of visitors, merely to take reasonable care to provide reasonable safety' (Mackay J, *Bowen v National Trust* [2011] at [6]).

***Bowen v National Trust* [2011] EWHC 1992 (QB)**

The claimant was killed when a 21-metre tree branch fell entirely without warning on a group of school children sheltering under the tree while on a school trip to Felbrigg Hall in Suffolk (owned by the National Trust). Three other children were seriously injured. The claimants argued that the defendant's tree inspectors, for whom the National Trust was vicariously liable, failed to exercise reasonable care in failing to spot the defect in the tree and 'tagging' it as requiring remedial action. Rejecting their claim, Mackay J suggested it was 'the cruellest coincidence' that the branch fell just as the children were standing underneath it (at [43]). Nevertheless, he continued,

I accept these inspectors used all the care to be expected of reasonably competent persons doing their job, and the defendant had given them adequate training and instruction in how to approach their task. To require more would serve the desirable end of compensating these claimants for their grievous loss and injuries. But it would also be requiring the defendant to do more than was reasonable to see that the children enjoying the use of this wood were reasonably safe to do so. I regretfully conclude that I cannot find that the defendant was negligent or in breach of its duty in respect of this tragedy. (Mackay J at [43])

In short, in the words of McCombe LJ in *Edwards v London Borough of Sutton* [2016], 'not every accident (even if it has serious consequences) has to have been the fault of another; and an occupier is not an insurer against injuries sustained on his premises' (at [61]).

Whether the occupier has breached their duty of care is determined by the same basic principles as in the common law of negligence (as reflected by the fact that some of the leading cases on breach are cases of occupiers' liability).¹⁹ So, for instance, in determining what amounts to reasonable care, we take into account the likelihood and gravity of harm resulting from the state of the premises and the costs involved in rectifying any potential dangers. In particular, the 1957 Act requires courts to consider what is reasonable 'in all the circumstances of the case' (s 2(2)), including the degree of care expected from the visitor/claimant (s 2(3)). We looked at breach in detail in **Chapter 8**, and the cases discussed there are relevant here too. Here we shall draw attention only to a handful of issues which are either specific to occupiers' liability or are mentioned in the 1957 Act.

It is clear that the courts will take into account the resources of the occupier when considering what steps they might reasonably be expected to take to ensure the visitor is reasonably safe.²⁰

***Kiapasha (t/a Takeaway Supreme) v Laverton* [2002] EWCA Civ 1656 (CA)**

The claimant broke her ankle after slipping over in the defendant's busy takeaway after a night out. It had been raining earlier in the evening and the shop floor was wet and slippery. The shopkeeper had taken a number of precautions to prevent accidents: the shop floor had been re-laid using slip-resistant tiles; there was a doormat to limit the amount of water brought in on the feet of the customers (although this may have been kicked out of the way at the time of the accident); and there was a system for mopping up excess water, which usually took place six or seven times on a busy night.

The majority of the Court of Appeal held that the shopkeeper had done all that could reasonably be expected of him in his attempts to keep his shop floor dry:

In some large businesses it may be reasonable to expect stringent precautions at the shop door, including mats large enough to absorb moisture from large numbers of customers who do not wipe their feet and/or a member of staff stationed near the door to mop up as required ... The question is what was reasonable to expect of the defendant in the particular circumstances of the case and whether anything else would have made a difference. In my view, it would not ... [I]n that particular shop, at that particular time, it was not reasonable to expect the shopkeeper to ensure that the mat was in place and to mop the floor often enough and efficiently enough to prevent its being wet, even significantly or considerably so. (Hale LJ at [19]–[23])²¹

p. 324 More recently, in *Apres Lounge v Wade* [2023], the claimant was unable to recover for injuries caused by slipping on a spilled drink near a bar on a night out. The fact that the defendant employed a number of staff including two 'spotters' who continually walked around the floor, collecting glasses and checking for safety issues, meant that 'there was direct and detailed evidence of the system which was being operated in the bar that night. 'Having regard to the realities of running a late night bar, the system of floor inspections ... which the judge accepted was being done—[and which] was sufficient to fulfil the statutory duty ... lying upon the defendant. Its system was proactive and not reactive. It was one of continuous monitoring' (no page or paragraph number).

As with breach more generally, the occupier's duty to ensure that the visitor will be reasonably safe while on their premises does not mean that the visitor cannot be expected to take reasonable care for their own safety (s 2(3)). The 1957 Act makes particular reference to children and professionals.

11.2.2.1 Children

Children invited onto premises are owed a common duty of care like all other visitors. However, where the visitor is a child more may be required of the occupier to ensure that they are kept *reasonably* safe. Though the courts recognise that it may be impossible to make the premises *completely* safe for children—especially when they are not under the supervision of their parents (*Bourne Leisure Ltd v Marsden* [2009]). In particular, the occupier must take into account that children will be less careful than adults (s 2(3)(a)). As such, occupiers will generally owe a higher standard of care to children than to older visitors (*Glasgow Corporation v Taylor* [1922]).

***Jolley v Sutton London Borough Council* [2000] 1 WLR 1082 (HL)**

A boat had been abandoned for at least two years on land owned by the defendant. Although it appeared to be in relatively good condition, it was in fact rotten. The claimant, a 14-year-old boy, was crushed when the boat fell on him (he and a friend had decided to repair it), suffering serious spinal injuries which left him paralysed. He brought an action against the council for damages under the 1957 Act.

Holding the council liable, the House of Lords noted that the boat was likely to be a particular attraction—or an ‘allurement’—to children. Though the boat was not likely to pose a danger to adults, who were more likely to steer clear of it, it was reasonably foreseeable that children might approach the boat and be tempted to climb onto it. As Lord Hoffmann noted: children’s ‘ingenuity in finding unexpected ways of doing mischief to themselves and others should never be underestimated’ (at 1093). The claimant was found to be contributorily negligent, and his damages were reduced by 25 per cent.

It is worth stressing that the ‘allurement’ of the boat in *Jolley* was relevant to establishing the foreseeability of the children climbing onto the boat, and hence whether it was reasonable to have expected the council to have taken steps to ensure the boat was safe or to remove it. In other words, its relevance was to determining whether the defendant breached its duty to the claimant. Clearly, this question only arises once we have established that the child claimant is indeed a visitor, that is, has the occupier’s permission to enter or use the premises, and so is owed a duty under the 1957 Act.

At one point, it seemed that the courts were willing to stretch the notion of permission in relation to children to ensure that they were always treated as visitors, most likely because, as already noted, trespassers were afforded little protection at common law (*British Railways Board v Herrington* [1972]). However, now the 1984 Act has extended the protection accorded to those injured when on another’s premises without permission, there is far less need for the courts to stretch the notion of visitors when dealing with children. As such, when determining both whether the claimant has permission to enter the defendant’s premises and how far that permission extends—that is, determining whether a child is a visitor for the purposes of the 1957 Act—the same rules apply to adults and children alike.

It is usually argued that, in deciding whether the common duty of care has been breached, an occupier is entitled to assume that parents will take reasonable care of young children:

[T]he responsibility for the safety of little children must rest primarily on the parents; it is their duty to see that such children are not allowed to wander about by themselves, or at least to satisfy themselves that the places to which they do allow their children to go unaccompanied are safe for them to go to. It would not be socially desirable if parents were, as a matter of course, able to shift the burden of looking after their children from their own shoulders to those who happen to have accessible bits of land. (*Phipps v Rochester Corporation* [1955] at 472)

In *Simkiss v Rhondda Borough Council* [1983], for example, a child was seriously injured whilst playing with a friend on a steep bank. In the course of argument, it became clear that the child's father did not believe the bank to be dangerous. The Court of Appeal held that it was not reasonable to hold the council to a higher standard of care than a reasonably prudent parent—if the child's father did not consider the bank to be dangerous, then why should the council? Moreover, even if the father *had* considered the bank to be dangerous, the council was entitled to assume that the father would warn his child of familiar and obvious dangers. The fact that he had not either meant that he thought the bank was safe or was evidence of negligence on *his* part.

Counterpoint

The decision in *Simkiss* appears somewhat harsh. Do you think it would have been decided differently if the father had given a different answer to the question of whether he considered the bank dangerous? Why should the fact that the claimant's parents fail to give sufficient regard to their child's safety entitle occupiers to escape liability for their own neglect? It is one thing to say that occupiers should not be expected to make up for parents' shortcomings, quite another to hold them to a lower standard simply because the child's parents would have done no better.

11.2.2.2 'Persons in the exercise of a calling'

While greater care must be taken in relation to children invited onto one's premises, less is required of occupiers in respect of visitors who are considered able to look after themselves. In particular, skilled visitors are expected to guard against special risks associated with their profession (s 2(3)(b)).

In *Roles v Nathan* [1963] two chimney sweeps died whilst trying to mend the chimney of a coke-fired boiler. Though they had been warned repeatedly that the boiler room was dangerous and were told to leave, they had carried on working. The majority of the Court of Appeal dismissed a claim under the 1957 Act by the chimney sweeps' widows on two grounds: first, a householder can reasonably expect a specialist to appreciate and guard against dangers associated with their trade (s 2(3)); and, secondly, the warning had been sufficient to ensure that the sweeps were, in all the circumstances, 'reasonably safe' within the meaning of section 2(4). Accordingly, though Lord Denning MR was of the view that no duty of care was owed to the sweeps, in any event:

the duty was discharged ... in regard to the dangers that caused their deaths. If it had been a different danger, as for instance if the stairs leading to the cellar gave way, the occupier might no doubt be responsible, but not for these dangers which were special risks ordinarily incidental to their calling. (at 1123–4)²²

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11.2.2.3 Warnings

An occupier may discharge their duty by giving a warning of the potential danger. (s 2(4)(a)) Warnings may be verbal, visual or written—for example, a notice on the edge of a cliff, a barrier around a building site or a large yellow 'warning' sign on a shop floor. However, whatever its form, a warning will only be sufficient to discharge an occupier's duty to a particular visitor if, in all the circumstances, it is enough to enable that visitor to be reasonably safe.²³ Lord Denning MR in *Roles v Nathan* used this example:

Supposing, for instance, that there was only one way of getting into and out of premises, and it was by a footbridge over a stream which was rotten and dangerous ... [previously] the occupier could escape all liability to any visitor by putting up a notice: 'This bridge is dangerous', even though there was no other way by which the visitor could get in or out, and he had no option but to go over the bridge. In such a case, s 2(4)(a) [of the 1957 Act] makes it clear that the occupier would nowadays be liable. But if there were two footbridges, one of which was rotten, and the other safe a hundred yards away, the occupier could still escape liability, even today, by putting up a notice: 'Do not use this footbridge. It is dangerous. There is a safe one further upstream'. Such a warning is sufficient because it does enable the visitor to be reasonably safe. (at 1124)

In *English Heritage v Taylor* [2016], the claimant was able to recover for the serious head injury he sustained after falling over a sheer drop while on a day out with his grandchildren at Carisbrooke Castle. The defendant had failed to provide a sign warning of the drop, which was not obvious.²⁴ However, Etherton MR continued:

[A]s with many public organisations which have large areas of land and premises open to the public, [English Heritage] has acted (as an occupier) in a way consistent with the principle that adult visitors do not require warnings of obvious risks except in cases where they do not have a genuine and informed choice ... I accept that questions of whether a danger is obvious may not always be easy to resolve ... But there are many areas of life in which difficult borderline judgments have to be made. This is well understood by the courts and is taken into account in deciding whether negligence or a breach of section 2 of the Act has been established. In this context, it is highly relevant that the common duty of care is to take such care 'as in all the circumstances is reasonable' to see that the visitor is 'reasonably' safe in using the premises for the purpose for which he is invited or permitted by the occupier to be there. The court is, therefore, required to consider all the circumstances. These will include how obvious the danger is and, in an appropriate case, aesthetic matters. If an occupier is in doubt as to whether a danger is obvious, it may be well advised to take reasonable measures to reduce or eliminate the danger. But the steps need be no more than reasonable steps. That is why the decision in this case should not be interpreted as requiring occupiers like English Heritage to place unsightly warning signs in prominent positions all over sensitive historic sites. (at [28]–[30])²⁵

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Where the danger is obvious there is usually no need to give a warning. Thus, in *Staples v West Dorset District Council* [1995] the occupiers were under no duty to warn of the inherent dangers of a famous sea wall in Lyme Regis known as 'the Cobb', which is covered in seaweed and algae and obviously very slippery.

Nor will the failure to warn about one type of danger help the claimant if they subsequently suffer personal injury as a result of an unrelated danger—as was the case in *Darby v National Trust* [2001].

***Darby v National Trust* [2001] EWCA Civ 189 (CA)**

The claimant's husband drowned while swimming in a pond at Hardwick Hall in Derbyshire owned by the National Trust. He was a competent swimmer, but the pond was murky and very deep in places. Visitors often swam or paddled in the pond and the National Trust did little to discourage this. There was a legible but inconspicuous notice near the car park, which—among other things—forbade bathing and boating, and wardens occasionally patrolled the ponds, discouraging people from swimming in them by warning of the dangers of catching Weil's disease from the water. The claimant argued that the National Trust's failure to place 'No Swimming' notices around the pond (or to similarly warn of the risk of catching Weil's disease) amounted to a breach of their common duty of care under section 2 of the 1957 Act.

The Court of Appeal held that such notices would have told Mr Darby 'no more than he already knew' about the risks relating to swimming in open water and that the National Trust's failure to warn about one type of danger (Weil's disease) could not help the claimant if they subsequently suffered personal injury as a result of an unrelated danger (drowning) (at [25]–[26]). There were no special or hidden dangers in relation to this particular pond and no duty on the part of the National Trust to warn him of obvious dangers. The National Trust had done all that was reasonable in the circumstances of the case to see that the claimant's husband was reasonably safe while using its premises:

It cannot be the duty of the owner of every stretch of coastline to have notices warning of the dangers of swimming in the sea. If it were so, the coast would have to be littered with notices in places other than those where there are known to be special dangers which are not obvious. The same would apply to all inland lakes and reservoirs. (May LJ at [27])

11.2.2.4 Notices excluding liability

The presence of an effective warning notice will defeat a claim under the 1957 Act because it means that, in the circumstances, the defendant has taken reasonable care to ensure that visitors are safe on their premises. By issuing a warning the defendant has told visitors what they must do and not do to avoid being harmed, and has, in so doing, discharged their duty to the visitors. This is different to the situation where an occupier seeks to use a written notice (or similar, such as through an express term of a contract) to restrict, exclude or otherwise modify their duty to a visitor imposed in section 2(1). Whereas warning notices seek to ensure that visitors are reasonably safe, thus satisfying the duty imposed on the occupier under the 1957 Act, such exclusions seek to limit the extent of the occupier's duty so as to prevent a duty from arising in the first place (or at least to limit its scope by setting out the conditions on which the claimant enters the premises).

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Where the premises are occupied for business purposes, an occupier's ability to limit their liability is restricted by sections 2(1) and 2(2) of the Unfair Contract Terms Act 1977.²⁶ Such an occupier is unable to restrict liability for death or personal injury resulting from negligence; however they are able to restrict their duty in relation to other damage where it is reasonable to do so. If the premises are in private use, the occupier is free to extend, restrict or otherwise modify their liability as much (or as little) as they choose.

11.2.2.5 Faulty execution of work

Where an accident is the result of a subcontractor's work on the premises, the occupier will not be liable if, in all the circumstances, they have acted reasonably in entrusting the work to an independent contractor and have taken reasonable steps (if appropriate) to check that the contractor is competent and that the work has been properly done (s 2(4)(b)). Usually, the more technical the work, the more reasonable it will be to entrust it to an independent contractor (compare *Woodward v Mayor of Hastings* [1945] in which the claimant was able to recover for injuries sustained as a result of slipping on some icy steps—the cleaner had removed the snow but not put down any grit (or similar) and *Haseldine v CA Daw & Sons Ltd* [1941] in which the occupier was not liable for injuries sustained as a result of a broken lift—they had reasonably entrusted its maintenance to the engineering company, which had not repaired it effectively).

A claimant who is injured as a result of a subcontractor's faulty work may (also or alternatively) have a claim against that subcontractor under the ordinary principles of negligence. This raises an interesting related question as to when an occupier is under a duty to ensure that subcontractors who they entrust to do work on their premises are insured or otherwise have sufficient resources to meet any claims that may arise from their negligence.

***Gwilliam v West Hertfordshire Hospitals NHS Trust* [2002] EWCA Civ 1041 (CA)**

The 63-year-old claimant was injured while using a 'splat wall' (a Velcro wall which people attempt to stick themselves to by jumping off a trampoline) run by an independent contractor at a charity fun day organised by the defendant occupier, the NHS Trust. Her injuries were caused by the independent contractor's negligence. Unfortunately, the contractor's insurance policy had lapsed and so it was unable to meet her claim in full. The claimant sued the NHS Trust for failing to ensure that the contractor was adequately insured.

The Court of Appeal denied her claim for the outstanding amount of damages. The majority of the court held that though the NHS Trust owed the claimant a duty to check that the contractor had adequate insurance (on the basis that this went to the competence of the contractor and so was relevant to the reasonableness of the occupier in choosing the particular contractor), on the facts the

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NHS Trust had done enough (under s 2(4)(b) of the 1957 Act) to discharge their duty and so there was no breach. It would, the majority suggested, be unreasonable to require the occupier to go any further by, for example, checking the specific terms of the policy.

Sedley LJ strongly dissented on the existence of a duty (though all members of the court concurred in dismissing the appeal).²⁷ There was, he suggested, a big difference between a duty to protect visitors from physical injury and a duty to protect them from an inability to recover damages (at [56]).

The upshot of the decision in *Gwilliam* is that a defendant occupier may be liable to the victims of a third party's wrong, if they fail to ensure that the third party is in a position to meet any such liabilities. It is difficult to see why the simple fact that the third party's negligence happened on the defendant's premises is sufficient reason for holding the occupier liable. As Jonathan Morgan suggests, *Gwilliam* appears to be grounded in a particular view of the functions of tort law:

All three judges seem to agree that the overriding purpose of liability in tort law is to compensate loss by spreading it through an insurance pool, and therefore that a failure to bring this about by failing to carry insurance is itself, in principle at least, a wrongful act.²⁸

However, shortly after *Gwilliam*, in *Naylor v Payling* [2004], the Court of Appeal held that the owner of a nightclub had taken reasonable care to see that visitors to the club were safe by contracting the services of a company to provide security at his club, and that, save in special circumstances, there was no general duty to take reasonable steps to ensure that an independent contractor was insured. The claimant had suffered serious head injuries while being ejected from the club. It was accepted that the bouncer had acted negligently; however, his employer did not hold a public liability insurance policy covering the activities of his employees and so was unable to meet the claim. Similarly, in *Glaister v Appleby-in-Westmoreland Town Council* [2009], the Court of Appeal affirmed Neuberger LJ's view in *Naylor* of *Gwilliam* being 'a difficult case' (at [37]) and stating a preference for the approach of Sedley LJ (at [54]). Rather than focusing on the loss-spreading benefits of insurance, the Court of Appeal in *Glaister* focused on the deterrent effect of such claims:

I would reject the idea that those bodies, public or private, which try to encourage attendance at such events or undertake some responsibility in relation to them thereby expose themselves to legal liability for the negligence of other bodies participating in the event. I do not see the justice of it and I am concerned that the fear of it is likely to act as a deterrent to those ... who freely give their time and energies to the encouragement of such events. If that were to happen, the result would be an impoverishment of our community life. (Toulson LJ at [48])

Pause for reflection

While the judges in *Glaister* were keen to praise the claimant's 'selfless and public spirited' act (at [64])—he was seriously injured after being kicked in the head attempting to catch a horse that had broken loose from his tethering at the Appleby Horse Fair—the upshot of their decision was that he was left uncompensated for his injuries. Do you think this is the right outcome? What role do you think concerns about the so-called 'compensation culture' played in the court's decision?

11.2.2.6 Defences

An occupier will not be liable where a visitor's injuries arise from 'risks willingly accepted as his by the visitor' (s 2(5)).²⁹ The test is a high one. For the defence to succeed the claimant must be aware of the danger and risk and have, expressly or impliedly, accepted it. In *Geary v Wetherspoons plc* [2011], for example, the claimant fractured her spine and was paralysed after falling four metres onto a marble floor while attempting to slide down a banister:

The claimant freely chose to do something which she knew to be dangerous ... She knew that sliding down the banisters was not permitted, but she chose to do it anyway. She was therefore the author of her own misfortune. The defendant owed no duty to protect her from such an obvious and inherent risk. She made a genuine and informed choice and the risk that she chose to run materialised with tragic consequences. (Coulson J at [46])

Often where an occupier is unable to establish that the visitor has willingly accepted the risk of injury, they may still be able to raise the defence of contributory negligence.³⁰

White Lion Hotel v James [2021] EWCA Civ 31 (CA)

Christopher James died after falling from a second-floor window while staying at the White Lion Hotel. At first instance, the judge found that the hotel owners had failed to take reasonable care for the safety of the deceased in using the room (as required by s 2 of the 1957 Act), but made a finding of 60 per cent contributory negligence. There was no appeal against these findings. Rather the appeal was on a point of law: that the judge had failed to apply the principle derived from *Tomlinson, Edwards v London Borough of Sutton* and *Geary v Wetherspoons plc*, that 'a person of full age and capacity who chooses to run an obvious risk cannot found an action against a defendant on the basis that the latter has either permitted him to do so, or not prevented him from so doing' (at [5]).

Dismissing the appeal, the Court of Appeal held: 'There is no absolute principle that a visitor of full age and capacity who chooses to run an obvious risk cannot found an action against an occupier on the basis that the latter has either permitted him so to do, or not prevented him from so doing' (at [88]). Davis LJ continued:

What a claimant knew, and should reasonably have appreciated, about any risk he was running is relevant to that analysis and, in cases such as *Edwards* and *Tomlinson*, may be decisive. In other cases, a conscious decision by a claimant to run an obvious risk may, nevertheless, not outweigh other factors: the lack of social utility of the particular state of the premises from which the risk arises (the ability to open the lower sash window); the low cost of remedial measures to eliminate the risk (£7 or £8 per window); and the real, even if relatively low, risk of an accident recognised by the guilty plea. This was a risk which was not only foreseeable, it was likely to materialise as part of the normal activity of a visitor staying in the bedroom. (at [83])

Nevertheless, on the facts of the case, the claimant had consciously chosen to sit on the window sill and accepted the risk of falling if he leant too far out and that was not sufficient to amount to *volenti* under section 2(5) of the Act.

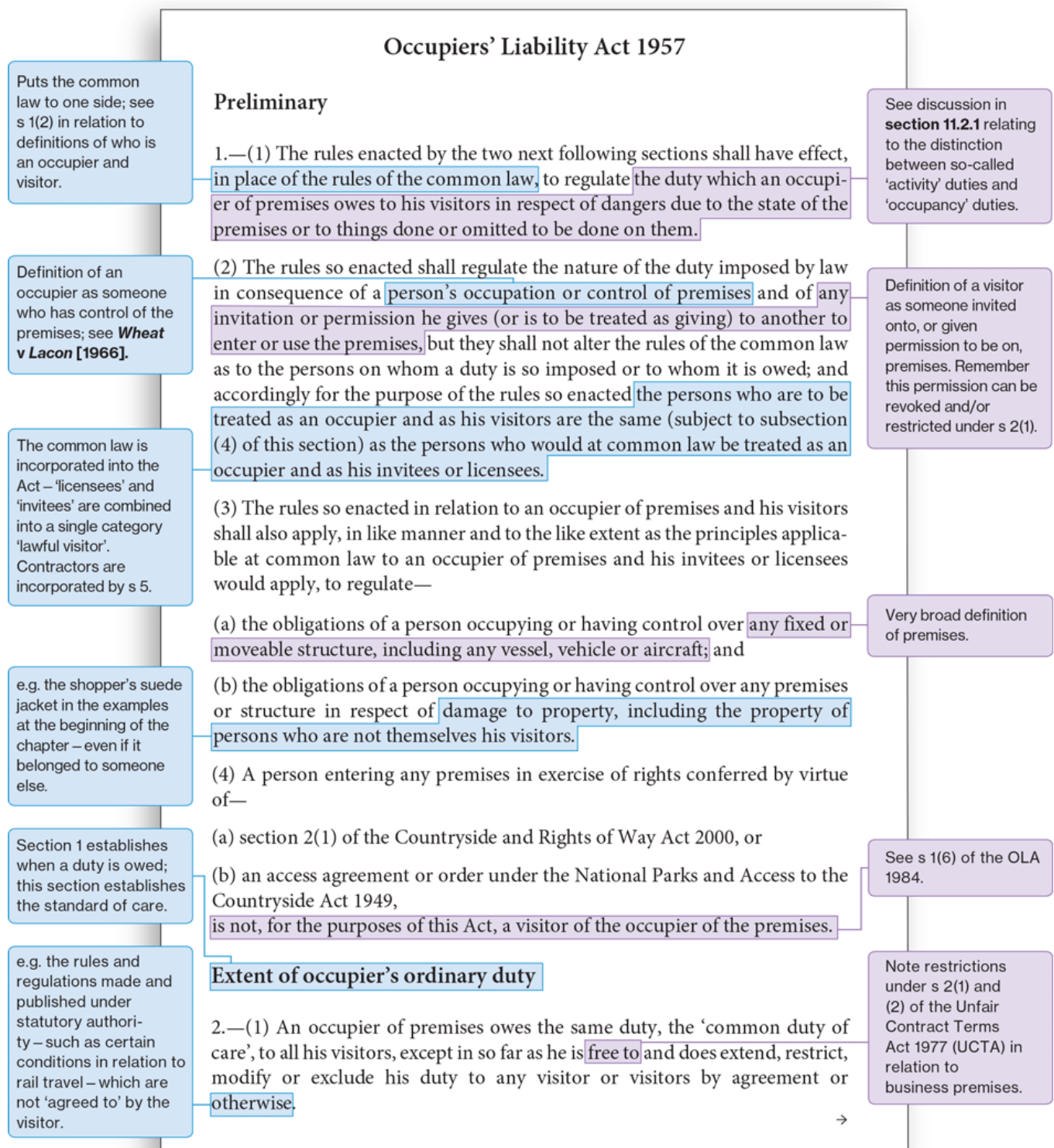
The defence of *volenti non fit injuria* was always a defence available to the occupier of the property and section 2(5) expressly preserves it. ... There is no finding that [James] was aware of, and expressly or impliedly accepted, that the risk had been created by the appellant's breach of duty and by his actions he was deliberately absolving or forgiving the appellant for creating the risk ... In my judgment these are findings which provide a basis for the determination of contributory negligence. They do not go sufficiently far to meet the requirements of section 2(5). (at [89], [97])

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-11-2>>.

11.3 The Occupiers' Liability Act 1957—Annotated

In **Figure 11.1** we have annotated extracts from the OLA 1957 highlighting the key issues discussed in this chapter.

Access an interactive annotated copy of the Act <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-statute-occupiers-liability-act-1957-interactive>> and click on the highlighted phrases for author commentary. You can also download a non-interactive copy of the annotated extract <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-statute-occupiers-liability-act-1957-figure-11-1>>.



11. Occupiers' liability

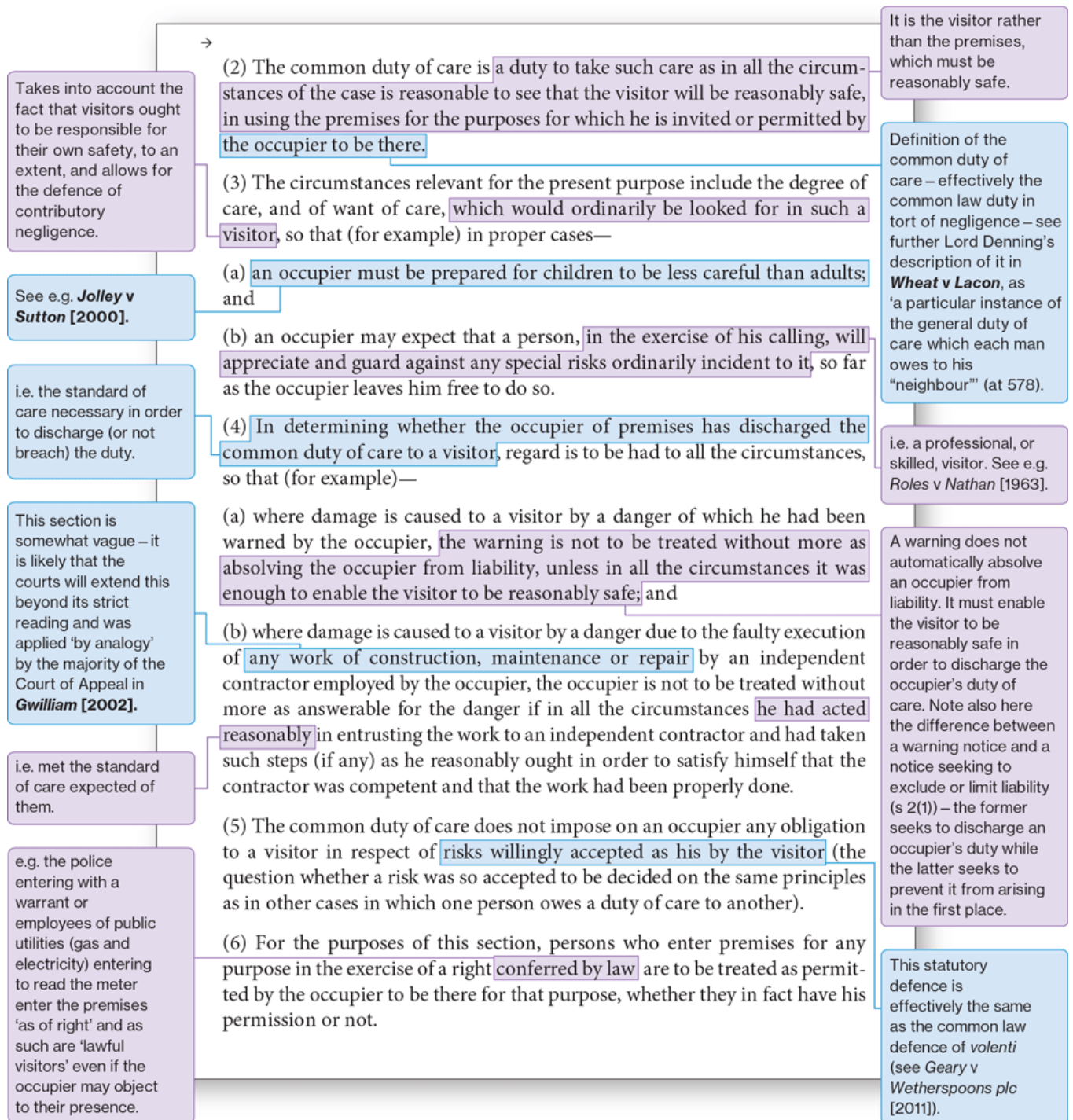


Figure 11.1 The Occupiers' Liability Act 1957

p. 332 11.4 The Occupiers' Liability Act 1984

Under the 1984 Act,³¹ an occupier owes a duty (provided certain conditions are met (s 1(3))) to take reasonable care in all the circumstances to see that persons 'other than his visitors'—typically trespassers³²—do not suffer injury as a result of 'danger due to the state of the premises or to things done or omitted to be done on them' (s 1(1)).

Pause for reflection

Imagine for a moment a 'trespasser'. Who do you have in mind? A burglar? A squatter? Someone sneaking a shortcut home across a neighbour's garden? A group of teenagers up to mischief on a building site? An elderly person who's entered the wrong property by mistake? A child fetching their football from a neighbour's roof? A person swimming in a lake in a country park?

Traditionally the law relating to trespassers has been very strict. Trespassers went onto premises at their own risk and occupiers were simply under an obligation not to deliberately or recklessly cause them harm (*Addie & Sons (Collieries) Ltd v Dumbreck* [1929]). This was seen to be particularly harsh, especially in relation to young children. The turning point came in *British Railways Board v Herrington* [1972] where the courts introduced a 'duty to act humanely'. In this case, a child suffered severe burns while playing on an electrified railway track. Although the defendant knew that a gap in their fence was regularly used as a shortcut and had seen children on the line before, they took no action. The House of Lords held that the claimant was able to recover. The defendant knew of the risk of children playing near the railway tracks and in failing to take the necessary steps to repair the gap in the fence was in breach of its duty.³³ However, while the duty imposed on occupiers in *Herrington* clearly went beyond a duty not to intentionally or recklessly cause harm, it was still lower than the duty set 15 years earlier in the 1957 Act. And, it wasn't until almost 30 years after its predecessor, that the 1984 Act finally extended the same 'common duty of care' to trespassers—albeit in more limited circumstances.

Why do you think it took Parliament so long to pass the 1984 Act? Think about the policy reasons behind the harshness of the common law—the reluctance of the courts to interfere with a landowner's freedom to use and enjoy their property coupled with the understanding of a trespasser as a 'wrongdoer' deserving of their fate. Can the latter argument be justified given that the term 'trespasser' covers a wide variety of cases like those listed at the start of this box?

p. 335 11.4.1 'Persons other than his visitors'

While it is clear that the 1984 Act applies to trespassers, what can be less clear is whether someone is or is not a non-visitor or, more specifically, a trespasser. The case law is clear that an individual can start out as a visitor but become a non-visitor or trespasser if they go beyond the permissions granted to them by the occupier (see e.g. *Tomlinson v Congleton*). It is also the case that a visitor who—by virtue of a 'genuine or honest mistake' made as a result of their confused or 'mentally unstable' state—enters a prohibited part of the occupier's premises is not a non-visitor or trespasser (*Spearman*).

But what if an individual goes beyond the limits of their permission but then changes their mind—what if they no longer want to be a trespasser but are unable to return to the part of the occupier's premises where they are allowed to be—are they still a trespasser? This was considered by the High Court in *Ovu v London Underground Ltd* [2021].

Ovu v London Underground Ltd [2021] EWHC 2733 (QB)

The claimant, Mr Ovu, died after falling down a flight of concrete stairs in the early hours of the morning at Canning Town Underground station. The stairs were located in a non-public area of the station and were part of a series of staircases and walkways which formed the emergency exit route from the public platforms. To access the stairs, Mr Ovu had passed through a clearly marked emergency exit barrier (which had triggered a silent alarm to the station control centre). He later passed through a more substantial, full height, wire gate or door. Although a non-public area, the defendant knew that it was regularly used by fare-evaders and persons requiring somewhere to urinate/be sick/take drugs. And so, once the alarm had sounded, the station customer service manager went down to check and, assuming that Mr Ovu had rejoined the platform, closed the substantial exit gate. At this point, the only way out of the station for Mr Ovu was to follow the walkways to another gate which opened onto the street. The CCTV showed that Mr Ovu found this gate but chose not to use it (perhaps because he didn't realise what it was). Instead, he returned to the original gate, where he stayed for some time before attempting to find an alternative exit, at which point he fell.

It was common ground that Mr Ovu passed through the emergency gates without the consent, whether expressed or otherwise, of the defendant. However, counsel for the claimant argued, relying on *Spearman*, that his behaviour in seeking to re-enter the platform suggested he intended to continue with his journey and that, at the point the closed gate prevented him from fulfilling that intention, he ceased to be a trespasser. In other words, that the status of a trespasser is not solely a matter of location and permission but may be affected by the state of mind of the person entering upon the (restricted) land.

Master McCloud rejected this argument.

In my judgment the crucial difference in the case of Mr Ovu is that firstly, he entered the off-limits area having passed very clear barriers and signage (and cannot, and does not pray in aid his own intoxication), and secondly that having at that stage become a trespasser merely changing his mind and wishing to re-enter the platform is, whilst plainly a mental state, not comparable to the case of a person who is unaware they have or are about to exceed their licence or unaware (as in *Herrington*) that they will be entering a dangerous area. ... The reference ... [in *Spearman*] to a person's state of mind and intention being an important additional factor must be read in that light on the facts of *Spearman* and cannot be read in my view as intending to import a broad notion of intentionality into the law of trespass. ... Mr Ovu entered the restricted area as a trespasser, was well aware of the fact that he was 'off limits' due to barriers and signage, and in my judgment even assuming he later intended to cease to be a trespasser, or even if one assumes he intended from the start to enter and then return soon afterwards, that mental state intention did not change his status from being a trespasser to being a licensee or invitee. ... [H]e had exceeded the well signposted limits of his permission and there is nothing on the agreed facts to suggest that the signage or barriers were (unlike the fence in *Herrington* or the unmarked doors in *Spearman*) such as to mean that he could not be aware of the limits of his licence. (at [66], [67], [69])

Mr Ovu was therefore a trespasser and, as such, the question for the court was whether London Underground owed him a duty of care under section 1(3) of the 1984 Act. Master McCloud concluded that they did not. The closure of the gate did not give rise to a new danger or make matters more dangerous than they were with the gate open, neither did the admitted failure to follow internal procedure to check the exit areas after the alarm. Nor were stairs dangerous in and of themselves. As such the risk is one the occupier could be reasonably expected to offer protection against:

In this instance all we have is a staircase, in normal condition, on which Mr Ovu fell. Nothing was being done on it or to it. There are no measures that the defendant could sensibly be expected to have taken which would prevent a fall on an ordinary staircase in good condition, given the obviousness of the risk of a fall on any stairs and the enormous implications if it were to be necessary to—somehow—intervene to protect transport users from that normal everyday risk. (at [79])

Watch our video 'No turning back: once a trespasser, always a trespasser' where we consider the decision in *Ovu* in more detail and argue that, notwithstanding the tragic circumstances of the case, it was correctly decided.

Video playback is not supported in this format.

Video 11: No turning back: once a trespasser, always a trespasser

11.4.2 Occupiers and premises

Section 1(2) of the 1984 Act defines an occupier and premises in the same way as the 1957 Act. Similarly, as with the 1957 Act, the duty imposed on occupiers under the 1984 Act extends only to harm caused by 'any danger due to the state of the premises' rather than by the activities of those on the premises. As Master McCloud noted in *Ovu*:

[T]he reference to 'danger due to the state of the premises or to things done or omitted to be done on them' is intended to echo the prior common law on 'occupancy duties' that is to say negligence (by activity, omission or state of premises) which give rise to a danger due to the state of the land itself, and not to 'activity' duties such as the holding of (say) a dangerous event such as a firework display, which on the authors' analysis falls to be determined outside the Acts. ... in *Tomlinson v Congleton* ... in relation to the 1984 Act ... the fact that a person may get into danger on a given piece of land is not itself a peril due to the state of the premises, and that even if the occupier's acts or omissions may concurrently affect his safety this does not widen the ambit of the Act. Supporting that we see *Revill v Newbery* in which the reckless shooting of a trespasser was not something governed, for liability purposes, by the 1984 Act but was a matter for the common law. (at [73])

p. 337 ↩ By way of example, in *Keown v Coventry National Health NHS Trust* [2006] the Court of Appeal held that the claimant's injuries were caused by his activity (in climbing up the underside of a fire escape) rather than the dangerous state of the premises (that is, the fire escape itself). More recently, in *Brown v South West Lakes Trust* [2022] the claimant drowned after her car went into a reservoir after coming off a nearby road. Rejecting the claim under the 1984 Act, Dingemans LJ held:

I accept that the 'state of the premises', within the meaning of section 1 of the 1984 Act, might include references to natural features. This is for the reasons given by Lord Hutton in *Tomlinson v Congleton*, and because it is a conclusion which is supported by the provisions of section 1(6A) of the 1984 Act, which was inserted by amendment by the Countryside and Rights of Way Act 2000, which referred to 'a risk resulting from the existence of any natural feature'. However the fact that the 'state of the premises' can include natural features, does not mean that the claim in this case might succeed. This is because it is necessary to show that there was a 'risk of ... suffering injury on the premises by reason of any danger due to the state of the premises' (emphasis added). In this case the danger arose because Mrs Brown's car came off the highway, travelled across the verge, went through the fence and down the bank, and into the reservoir. This danger was not due to the 'state' of the reservoir. (at [37])

11.4.3 Establishing a duty

A crucial difference between the 1957 Act and the 1984 Act is that while an occupier will *always* owe a duty of care to a visitor, this is not the case in relation to a non-visitor. In order for a duty to be owed under the 1984 Act, the following conditions, set out in section 1(3), must be met:

- (a) that the occupier is *aware* of the danger or has reasonable grounds to believe that it exists; and

- (b) the occupier *knows*, or has reasonable grounds to believe that someone is, or may come, in the vicinity of the danger (whether or not they have lawful authority to do so); and
- (c) the risk is one against which, in all the circumstances of the case, the occupier may *reasonably be expected* to offer some protection.

If these three conditions are satisfied the occupier will owe a duty of care in respect of any *personal* injury suffered by a non-visitor. Unlike the 1957 Act, the 1984 Act does not extend to property damage (s 1(8)).

***Tomlinson v Congleton Borough Council* [2003] UKHL 47 (HL)**

The claimant hit his head on the bottom of a lake (in a public park managed by the defendants) while attempting a shallow dive. He broke his neck and, apart from some small movement in his hands and arms, was paralysed from the neck down. Although boating and fishing were allowed, swimming was forbidden at the lake; prominent notices read: 'Dangerous water: no swimming'. However, visitors frequently ignored these, as well as the verbal warnings from ↵ council-employed park rangers, and several accidents had already occurred. The council knew this and had planned, for a number of years, to plant vegetation on the 'beach' areas to prevent people from entering the water. They had not yet done this for financial reasons. The claimant sued the council on the grounds that the council had breached their duty of care under the 1984 Act. The claimant's status as a visitor to the park was limited to the time *before* he entered the lake. As he did not have the occupier's permission to enter the water (he had ignored the warning signs) he became a trespasser as soon as he did so.

The House of Lords rejected his claim, overturning a majority Court of Appeal decision. There was no risk to the claimant due to 'the state of the premises or anything done or omitted upon the premises', and so no risk of a kind which gave rise to a duty under either of the OLAs:

There was nothing about the mere at Brereton Heath which made it any more dangerous than any other ordinary stretch of open water in England ... [Tomlinson] was a person of full capacity who voluntarily and without any pressure or inducement engaged in an activity which had inherent risk. The risk was that he might not execute his dive properly and so sustain injury. Likewise, a person who goes mountaineering incurs the risk that he might stumble or misjudge where to put his weight. In neither case can the risk be attributed to the state of the premises. (Lord Hoffmann at [26]–[27])

Nor did it make a difference that the council themselves had intended to take steps to reduce the danger by making it harder for people to gain access to the lake. Though the defendants were aware of the danger and had reasonable grounds to believe that people were in the vicinity of it, the risk was not one against which they could be reasonably expected to offer protection (s 1(3)(c)). Lord Hoffmann continued:

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It will be extremely rare for an occupier of land to be under a duty to prevent people from taking risks which are inherent in the activities they freely choose to undertake upon the land. If people want to climb mountains, go hang-gliding or swim or dive in ponds or lakes, that is their affair. Of course the landowner may for his own reasons wish to prohibit such activities. He may think that they are a danger or inconvenience to himself or others. Or he may take a paternalist view and prefer people not to undertake risky activities on his land. He is entitled to impose such conditions, as the Council did by prohibiting swimming. But the law does not require him to do so ... [Moreover,] even if swimming had not been prohibited and the Council had owed a duty under section 2(2) of the 1957 Act, that duty would not have required them to take any steps to prevent Mr Tomlinson from diving or warning him against dangers which were perfectly obvious.³⁴ If that is the case, then plainly there can have been no duty under the 1984 Act. The risk was not one against which he was entitled under section 1(3)(c) to protection. (at [45], [50])³⁵

Thus, the requirements for establishing a duty of care under section 1(3) of the 1984 Act had not been met.

Counterpoint

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↪ In *Tomlinson* the House of Lords affirmed the 'principle of individual responsibility'³⁶ and an understanding of tort law as a set of rules and principles of 'personal responsibility (and freedom) which concern how people may, ought or ought not behave in their dealings with others'.

The law does not provide such compensation simply on the basis that the injury was so disproportionately severe in relation to one's fault or even not one's own fault at all. Perhaps it should, but society might not be able to afford to compensate everyone on that principle, certainly at the level at which such compensation is now paid. The law provides compensation only when the injury is someone else's fault. (Lord Hoffmann at [4])

Of course, one significant consequence of the claimant's inability to establish fault was that he bore the entirety of the costs of his injury. His condition was no one's *fault* but his own.

Lord Hoffmann also considered the 'social cost' of finding the council liable. The principles of distributive justice are used to limit, rather than (as is more usual) to enable recovery:

There is an important question of freedom at stake. It is unjust that the harmless recreation of responsible parents and children with buckets and spades on the beaches should be prohibited in order to comply with what is thought to be a legal duty to safeguard irresponsible visitors against dangers which are perfectly obvious. The fact that such people take no notice of warnings cannot create a duty to take other steps to protect them. (Lord Hoffmann at [46])

Whichever view one prefers, the conclusion was, perhaps, inevitable.³⁷

Tomlinson provides an excellent example of the operation of the 1984 Act, and the difference between this Act and its 1957 counterpart. Under the 1957 Act, all the claimant needs to establish is that they were a visitor to the defendant's premises. Once this is proved, the occupier will automatically owe the claimant a duty of care and attention shifts to the other stages of a claim: Was the duty breached? Did it cause the claimant loss? Are there any defences? Under the 1984 Act, however, establishing a duty is less straightforward, and more claims will be defeated at this stage.³⁸

Pause for reflection

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↵ In **Tomlinson** the claim was rejected on the basis that no duty was owed to the claimant. This is because a duty will not arise under the 1984 Act unless the risk is one against which the occupier may reasonably be expected to offer some protection. In the circumstances, the House of Lords held that the council should not be expected to take steps to protect people from the obvious risks of diving into shallow water. As Lord Hoffmann noted, however, the same result would in substance have been reached had the claimant been classed as a visitor and his case had been dealt with under the 1957 Act. The only difference would have been that the claim would have failed not at the duty stage (since the 1957 Act automatically imposes a duty to all visitors) but at the breach stage (since, as the House of Lords held, it was not reasonable to expect the council to take any steps to make the premises safer).

As such, although the two Acts will often lead to the same results, they will do so for slightly different reasons. Cases that fail on the basis that there was no breach under the 1957 Act will often be dismissed under the 1984 Act on the ground that no duty arises in the first place. This reflects an important but subtle difference in emphasis between the two Acts:

Parliament has made it clear that in the case of a lawful visitor, one starts from the assumption that there is a duty whereas in the case of a trespasser one starts from the assumption that there is none. (Lord Hoffmann at [38])

If, as Lord Hoffmann suggests, the end result is (or at least can be) the same, why then do you think Parliament has created this difference in the operation of the two Acts? Think again about the distinction between visitors and non-visitors and the policy reasons for limiting liability in respect of trespassers.

11.4.3.1 Awareness of (or reasonable grounds to believe in the existence of) danger

In order for an occupier to owe a non-visitor a duty of care, they must be aware of the danger, or have reasonable grounds to believe that it exists (s 1(3)(a)). While the first part of this ground is subjective—it requires the occupier to *know* about the danger—the second part is (at least partly) objective—it asks whether the occupier *reasonably ought* to know about it.

Rhind v Astbury Water Park Ltd [2004] EWCA Civ 756 (CA)

The claimant suffered serious injuries after he hit his head on a fibreglass container diving into Astbury Mere in Cheshire to retrieve his football. The container was not visible from the surface; it was lying on the bed of the Mere, covered in silt. As there were clear notices near the Mere saying: 'Private Property: Strictly No Swimming Allowed' the claimant was a trespasser and so the question for the Court of Appeal was whether the defendants owed a duty of care under the 1984 Act.

Denying the claimant's claim, the court held that the defendants had no knowledge, nor were there reasonable grounds for them to believe, that the container was hidden beneath the surface of the Mere and that, as a result, no duty was owed.

p. 341 11.4.3.2 Knowledge of (or reasonable grounds to believe in) the presence of a non-visitor in the vicinity of danger

The occupier must also be aware, or have reasonable grounds to believe, that a non-visitor is in the vicinity of the danger (s 1(3)(b)). When we say that a person has reasonable grounds to believe that something is true, this means that, from the knowledge they do in fact have, they should have worked out or discovered something else. So, for instance, you may have reasonable grounds to believe that a problem question on occupiers' liability will appear on this year's exam paper if such a question has been included in every paper in the past ten years. From your knowledge of fact A—the contents of the past exam papers—you have reason to infer fact B—that such a question will appear in this year's paper. Accordingly, before we can say that an occupier had reasonable grounds to believe that a non-visitor is, or may arrive, in the vicinity of the danger on his premises, he must have actual knowledge of such 'background' or 'primary' facts as would support such an inference (*Swain v Puri* [1996]).

So, for example, if I know that people are playing football next to my field and that, in the past, people have come onto my field to fetch their ball, I have reasonable grounds to believe (i.e. I should have figured out) that they may do so again. However, if I had no knowledge that people had ever played football there or had gone onto the field to fetch their balls, *even if I should have known this*, I cannot be said to have reasonable grounds to believe they may do this in the future. To this extent, those who know less are less likely to be held liable, even though complete ignorance may be no less (and, indeed, may be more) culpable than partial ignorance.

The other point to note is that the defendant must know, or have reasonable grounds to believe, that the claimant (or someone like them) is in the vicinity of the danger *at the time the claimant was injured*. So it is not in itself enough to show that the defendant knew that the claimant had been on the premises previously, or even that they were likely to do so again. This *may* provide grounds for a reasonable belief that the claimant was in the vicinity of the danger at the time of the accident but whether it does will depend on the circumstances. For example, in *Donoghue v Folkestone Properties Ltd* [2003], the claimant's claim in respect of injuries he suffered while diving into the defendant's harbour was denied because, although the defendant was aware that people swam in the harbour during summer, they were not, and could not reasonably have been expected to be, aware that this would happen at night during the winter, which was when the claimant was injured.

11.4.3.3 Reasonable expectation of protection against the risk

Finally, the risk must be such that in all the circumstances of the case the defendant may be reasonably expected to offer some protection from it (s 1(3)(c)). As we have seen, this is where the claims failed in *Tomlinson* and *Ovu*. In determining whether it is reasonable to expect the occupier to offer protection, the courts must engage in a balancing exercise similar to that which they embark upon when determining whether a duty of care has been breached. This would include taking into account the costs of requiring the occupier to take steps to make the premises safer. For example, in *Simonds v Isle of Wight Council* [2004] a 5-year-old boy fell off a swing, breaking his arm. The swing was near to a playing field being used for a school sports day. It was argued that the school was under a responsibility to discourage the pupils from using the swings, for example by placing a cordon around them. This was rejected. One of the reasons the courts gave for this was that a likely consequence ↵ of finding the school liable was 'that sports days and other simple pleasurable sporting events would not be held ... Such events would become uninsurable or only insurable at prohibitive cost' (at [30]).

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11.4.4 The standard of care

The occupier's duty, once it is established, is to 'take such care as is reasonable in all the circumstances of the case to see that the [non-visitor] does not suffer injury on the premises' (s 1(4)). This is a more restrictive duty than that found in the 1957 Act—which requires the occupier 'to take such care as is reasonable in all the circumstances of the case to see that the visitor will be *reasonably safe* in using the premise for the purpose for which they were invited' (s 2(2)).

We may think that an occupier should not be expected to go as far to secure the safety of those they have *not* invited onto their land as they would in respect of those they have invited. As such, it is likely that in determining what will amount to reasonable care the courts will take into account that the claimant will not have been invited (expressly or by implication) onto the premises and that the occupier's duty under the 1984 Act is not as exacting as the duty under the 1957 Act (*Donoghue v Folkestone Properties Ltd* (at [31])). Beyond this, and as with the 1957 Act, in assessing what amounts to reasonable care the courts will weigh up the same sorts of factors as in ordinary common law negligence claims, including, for example, the resources of the defendant and the cost of taking precautions (*Ratcliff v McConnell* [1999]).

11.4.4.1 Warnings

It is possible for an occupier to discharge their duty under the 1984 Act by giving a warning or by discouraging people from entering the premises (e.g. a locked gate) (s 1(5)). However, unlike under the 1957 Act, where the warning must be such as to enable the visitor in all the circumstances to be reasonably safe (OLA 1957, s 1(4)(a)), under the 1984 Act all the occupier needs to do is to take reasonable steps to bring the danger to the claimant's attention.

11.4.4.2 Risks willingly accepted by the non-visitor

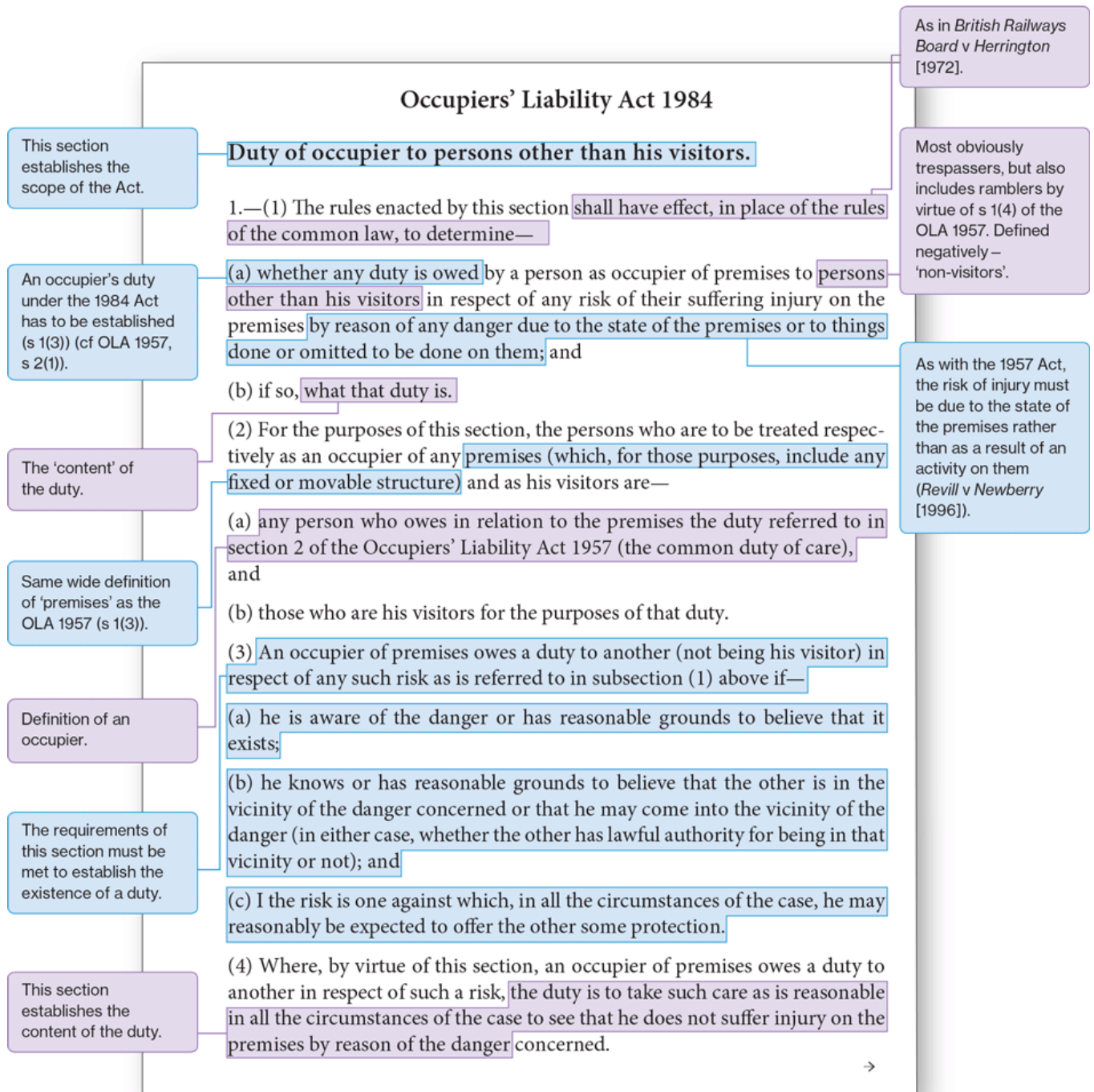
As under the 1957 Act, no duty will be owed by the occupier in respect of risks willingly accepted by the non-visitor (s 1(6)). Thus in *Ratcliff v McConnell* the Court of Appeal held that no duty was owed to a claimant who accepted the risk of serious injury from diving into water of an unknown depth when he climbed over a fence surrounding his college open-air swimming pool on his way home after a night out.

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-11-4>>.

11.5 The Occupiers' Liability Act 1984—Annotated

In **Figure 11.2** we have annotated extracts from the OLA 1984 highlighting the key issues discussed in this chapter.

Access an interactive annotated copy of the Act <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-statute-occupiers-liability-act-1984-interactive>> and click on the highlighted phrases for author commentary. You can also download a non-interactive copy of the annotated extract <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-statute-occupiers-liability-act-1984-figure-11-2>>.



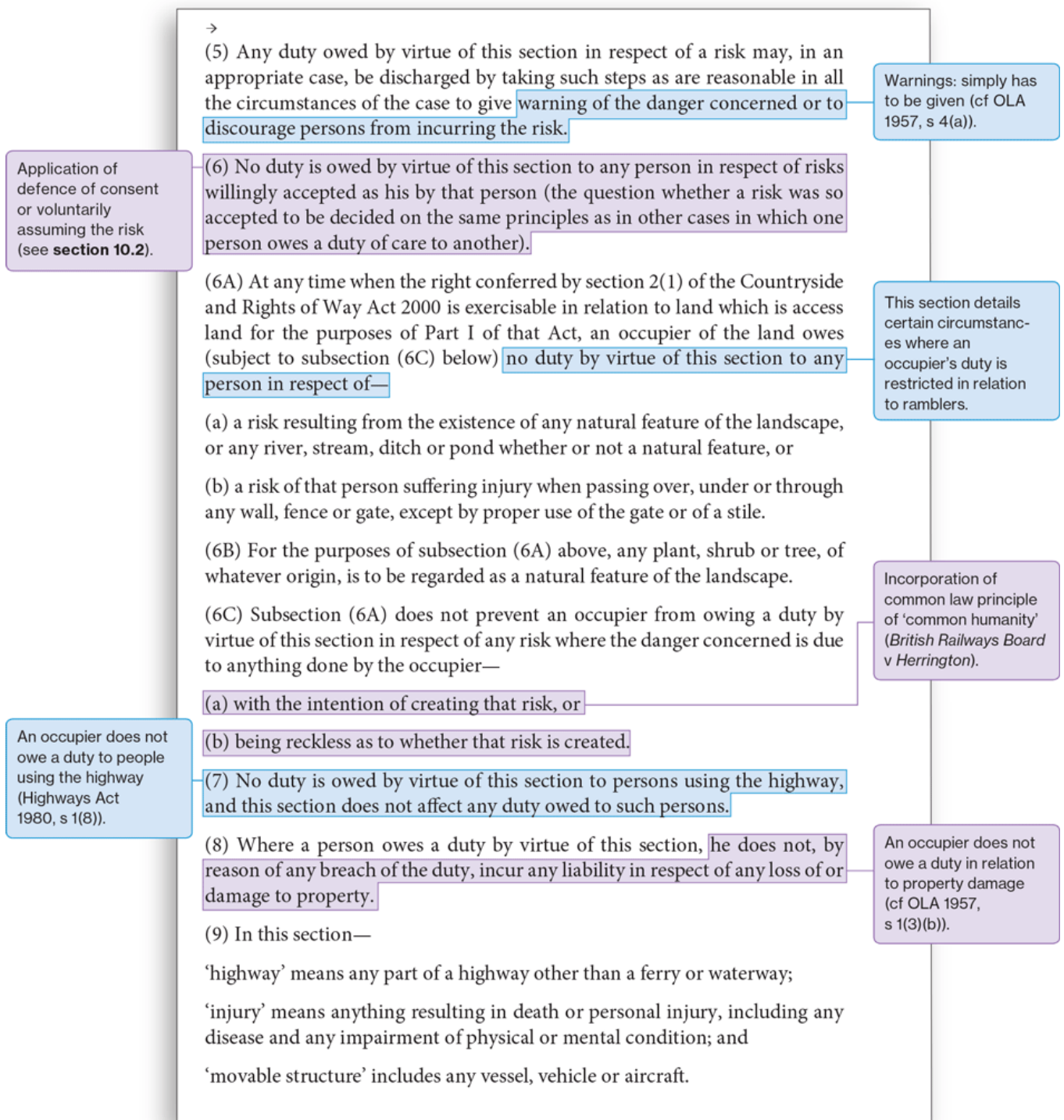


Figure 11.2 The Occupiers' Liability Act 1984

p. 343 11.6 The Occupiers' Liability Acts 1957 and 1984—At a glance

See Table 11.1.

11. Occupiers' liability

Table 11.1 Summary of the Occupiers' Liability Acts 1957 and 1984 You can also download a copy <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-occupiers-liability-acts-1957-and-1984-at-a-glance-table-11-1>> of this 'at a glance' summary of the Occupiers' Liability Acts 1957 and 1984.

	1957	1984
Type of damage (to claimant)	Personal injury and property damage (s 1(3)(b)) (as old common law).	Personal injury only. Property damage excluded (s 1(8)) but may be covered by common law (<i>British Railways Board v Herrington</i> [1972]).
'Premises'	Wide definition: 'any fixed or moveable structure' including vehicles (s 1(3)).	As 1957 Act (s 1(2)).
'Occupier'	Person who would have been at common law (s 1(2); <i>Wheat v Lacon</i> ; <i>Harris v Birkenhead Corporation</i>).	As 1957 Act (s 1(2)(a)).
'Visitor'	All visitors (s 1(2)) including invitees, licensees at common law and contractual visitors (s 5).	All non-visitors (usually trespassers) (s 1(1)(a)). Also, subject to certain restrictions, includes ramblers (exercising a right under s 2(1) of the Countryside and Rights of Way Act 2000). It does not apply to people using the highway (s 1(7)) or people using other public rights of way (s 1A).
Duty	Occupier owes 'a common duty of care' to all visitors simply by virtue of the fact that they are visitors (s 2(1)).	Occupier <i>only</i> owes a duty (defined in s 1(4)) if: (a) aware of danger (or has reasonable grounds to believe it exists); and (b) knows (or has reasonable grounds to believe) a non-visitor is (or may be) in vicinity of danger; and (c) the risk is one in all the circumstances the occupier may be reasonably expected to protect against (s 1(3)). See <i>Tomlinson</i> ; <i>Ovu</i> .
Extent of the duty (or standard of care)	A duty to take such care that the visitor is reasonably safe while using the premises for the purposes for which they are invited (s 2(2)). It is the visitor, not premises, who must be reasonably safe; different standards of care apply for different visitors—i.e. children and professionals (s 2(3)).	A duty to 'take such care as is reasonable in all the circumstances of the case to see that the [non-visitor] does not suffer injury on the premises' (s 1(4)).
Discharging duty (or breach)	As ordinary principles of breach (see Chapter 8).	As ordinary principles of breach (see Chapter 8).

	1957	1984
	The occupier's duty to ensure that the visitor will be reasonably safe while on their premises, not obligation to ensure safety of visitors (<i>Bowen v National Trust</i>). However, this does not mean that the visitor cannot be expected to take reasonable care for their own safety (s 2(3)). Standard of care may vary depending on the identity and expertise of the visitor, in particular: (1) the standard of care expected will be higher in relation to children, who are 'less careful than adults' ((s 2(3)(a)); <i>Jolley</i>); (2) professional visitors can be expected to 'appreciate and guard against special risks' (s 2(3)(b); <i>Roles v Nathan</i> [1963]). May be discharged by taking reasonable steps to give <i>warnings</i> must enable visitor to be 'reasonably safe' (s 2(4)(a); <i>Darby</i>). Generally there will be no liability for harms caused where independent contractors have done faulty work on the premises as long as occupier has acted reasonably in entrusting the work to them (s 2(4)(b)).	May be discharged by taking reasonable steps to give: a warning of the danger concerned (s 1(5)) (no requirement of reasonable safety); discouragement to persons from incurring the risk (s 1(5)).
Limitations and defences	Occupier can extend, restrict, modify or exclude their duty (so far as they are free to do so) via a notice or contract (s 2(1) (subject to UCTA, s 2)). Generally no duty in relation to risks 'willingly accepted as his' by the visitor (s 2(5)) (<i>Geary v Wetherspoons plc</i> cf <i>White Lion Hotel v James</i>). <i>Contributory negligence</i> (implied by s 2(3) although not mentioned in the statute, it is used by courts).	No express provision—but probably as 1957 Act (s 2(1)). Generally no duty in relation to risks 'willingly accepted as his' by the visitor (s 1(6); <i>Ratcliff v McConnell</i>). Contributory negligence (not mentioned in the statute, but is used by courts).

p. 348 11.7 Conclusion

All injuries that do not happen at the claimant's home or on the road must happen on someone else's property. In this chapter, we have considered the circumstances in which an occupier may be liable for injuries sustained on their premises. Despite Tony Weir's suggestion that accidents on private property have been marked out for special attention since 1866 when an employee of the gas company fell into an unfenced vat in a sugar factory (in *Indermaur v Dames* [1867]),³⁹ traditionally there has been a reluctance to allow such claims—usually relating to a desire to leave landowners alone to enjoy their land as they wish. This has been given a contemporary twist. The imposition of liability has been framed as an attack on the liberties of both the individual who chooses to engage in dangerous (but otherwise harmless) pastimes at his own risk *and* of citizens as a whole to enjoy the countryside. This is particularly apparent in *Tomlinson*, where the House of Lords reasserted the importance of individual responsibility, fault and interpersonal justice as the foundations of tortious liability.

Nevertheless, an occupier will be liable if they have not taken reasonable care to ensure that those they have invited, and sometimes not invited, onto their premises are reasonably safe. Determining the scope and nature of occupiers' duty is a heady mix of common law and statute. However, while the OLAs define the circumstances in which a duty of care will be owed (and tell us something as to its extent, as well as matters relating to its discharge and limitation), it is important to remember that questions of breach and causation still need to be established by reference to the ordinary principles of negligence.

End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 What are the main similarities and differences between the Occupiers' Liability Act 1957 and the Occupiers' Liability Act 1984?
- 2 Critically discuss the following statement in the context of occupiers' liability.
'Adults must be responsible for their own actions. It would be disastrous for society and contrary to public interest, if adults ... could get intoxicated and incapable, relying on a duty of care on others to ensure no harm befalls them, or to compensate them when it inevitably does.' (Master McCloud referring to the defendant's arguments in *Ovu v London Underground Ltd* at [48])

Use case examples to support your answer.

If you would like to know what we think, check the **answer guidance** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-11-answers-to-end-of-chapter-questions?options=showName>>.

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to the various parties?**

Here are some pointers to get you started:

- Are Iris, Otto and Bill visitors or non-visitors? You need to consider this in relation to each of them as this will determine which Act applies.
- Breach and causation are straightforward here, but could Bill be found contributorily negligent?

If you need some more guidance:

- See the **annotated version of the problem with issues and cases to consider** [<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-problem-question-interactive>](https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-problem-question-interactive).
- Check your answer against the **suggested outline answer** [<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-answers-to-problem-question>](https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-answers-to-problem-question).

Further reading

Much of the academic writing in this area concentrates on one or other of the two Acts. The best place to start your reading is with Buckley's 2006 article which looks at both Acts and will give you an overview of the law with a comparative twist.

Buckley, Richard 'The Occupiers' Liability Act 1984—Has *Herrington* Survived?' [1984] *The Conveyancer* 413

Buckley, Richard 'Occupiers' Liability in England and Canada' (2006) 35 *Common Law World Review* 197

Jones, Michael 'The Occupiers' Liability Act' (1984) 47 *Modern Law Review* 713

Morgan, Jonathan 'Tort, Insurance and Incoherence' (2004) 67 *Modern Law Review* 384

Payne, Douglas 'The Occupiers' Liability Act' (1958) 21 *Modern Law Review* 359

Additional suggestions for further reading can be found in this chapter's **web links** [<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-11-web-links?options=showName>](https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-11-web-links?options=showName).

Notes

- ¹ In this chapter, we will use the abbreviation OLAs when referring to both of the Occupiers' Liability Acts and OLA 1957 or OLA 1984 when referring to a specific Act.
- ² Richard Buckley 'Occupiers' Liability in England and Canada' (2006) 35 Common Law World Review 197, 215.
- ³ See further Jane Stapleton 'Tort, Insurance and Ideology' (1995) 58 Modern Law Review 820 and Jonathan Morgan 'Tort, Insurance and Incoherence' (2004) 67 Modern Law Review 384.
- ⁴ You may find it helpful to refer to the annotated version of the 1957 Act (**section 11.3**) or the OLAs 'at a glance' table (**section 11.6**). You can also download copies of **the annotated Act** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-11-annotated-statute-occupiers-liability-act-1957-figure-11-1>> and **the table** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-occupiers-liability-acts-1957-and-1984-at-a-glance-table-11-1>>.
- ⁵ Discussed in **Chapters 2 to 10, 18 and 19**, respectively.
- ⁶ And the 1984 Act discussed in **section 11.4**.
- ⁷ This distinction between so-called 'occupancy' and 'activity' duties predates the OLAs. It was developed by the courts as a way of avoiding the harshness of the common law. While liability in relation to the former depended on the status of the visitor, the ordinary rules of negligence applied to the latter.
- ⁸ His claim relying on the ordinary tort of negligence was successful.
- ⁹ Buckley **n2** 208.
- ¹⁰ This explains why landlords are not (usually) liable under the 1957 Act (although they may be liable under the Defective Premises Act 1972).
- ¹¹ The Defective Premises Act 1972 is also discussed in relation to negligence liability for economic loss in **section 7.4**. See also JR Spencer 'The Defective Premises Act 1972—Defective Law and Defective Law Reform' [1975] Cambridge Law Journal 48.
- ¹² This duty also extends to the visitor's property (s 1(3)(b)).
- ¹³ This is largely a matter of common sense. Consider again the dinner guest who fell down the stairs in the examples at the start of the chapter. They will remain a visitor (and the occupier will be liable) so long as their presence on the stairs was reasonable. See further *Gould v McAuliffe* [1941] and *Kolasa v Ealing Hospital NHS Trust* [2015].
- ¹⁴ This has raised further questions as to whether the 'test' which establishes whether the claimant is a visitor or non-visitor (trespasser) is subjective or objective. See further discussion of *Ovu v London Underground Ltd* [2021] in **section 11.4**.
- ¹⁵ The judge also refused to find the claimant contributorily negligent, see further **section 10.4.1**.
- ¹⁶ The defendants' appeal was unsuccessful. The claimant—a Commonwealth Games medal winner and the first blind man to reach the South Pole—expressly limited his claim to £2 million, the limit of the defendants' insurance. Without this, the value of his claim would have been 'significantly greater' (at [1]).
- ¹⁷ A claim under the 1984 Act was abandoned.

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- ¹⁸ BBC News Online 'No compensation for Plymouth student injured in fall' 29 July 2010.
- ¹⁹ See e.g. *Latimer v AEC Ltd* [1953].
- ²⁰ Thus, in relation to the examples posed at the beginning of the chapter, while an occupier might be reasonably expected to ensure that children's toys are tidied away before hosting a dinner party (this being fairly easily achieved), more information is needed (in relation to the resources of the occupier, extent of the unevenness, cost of repair and so on) before the same can be said in relation to the uneven paving stone at the students' halls of residence.
- ²¹ Consider again the spilt milk in a supermarket aisle in the examples at the beginning of the chapter—what additional information would the court need in order to decide whether the occupier was in breach of their duty?
- ²² A similar claim against an occupier also failed in *General Cleaning Contractors v Christmas* [1953] (discussed in **section 13.2.3**).
- ²³ A warning that might suffice to alert adults to dangers on the premises may not be sufficient to warn children. Similarly, simply placing a warning sign in the supermarket aisle (in the example at the beginning of the chapter) may not be enough, in itself, to absolve the occupiers of liability.
- ²⁴ The claimant's damages were reduced by 50 per cent on the basis of his contributory negligence.
- ²⁵ Inevitably, perhaps, this latter point was lost on certain parts of the British press. See e.g. Nicola Harley 'Historic sites could be littered with "irritating" warning signs after pensioner fell in moat' *The Telegraph* 12 May 2016.
- ²⁶ Section 1(1)(c) of the Unfair Contract Terms Act 1977 specifically refers to notices excluding or limiting liability under the 1957 Act.
- ²⁷ Sedley LJ also disagreed with Lord Woolf CJ and Waller LJ on the issue of breach. If the Trust had owed a duty of care, he argued, given the ease with which the insurance certificate could have been checked (e.g. by being faxed or sent to the hospital), the Trust would have, on the facts of the case, breached their duty.
- ²⁸ Morgan **n3** 389.
- ²⁹ The statutory defence found in s 2(5) of the 1957 Act is indistinguishable from the common law defence of *volenti*, discussed further in **section 10.2**.
- ³⁰ Discussed in **section 10.4**.
- ³¹ You may find it helpful to refer to the annotated version of the 1984 Act (**section 11.5**) or the OLAs 'at a glance' (**section 11.6**).
- ³² While it is tempting to see the distinction between the 1957 and 1984 Acts as applying to 'lawful' and 'unlawful' visitors, this is not accurate. The term 'non-visitor' also applies to people exercising a private right of way and ramblers *lawfully* exercising a public right of way by using a footpath across private land (subject to some exclusions) (s 1(6A) as inserted the Countryside and Rights of Way Act 2000, s 13).
- ³³ There is an interesting parallel here with land negligence cases such as *Sedleigh-Denfield v O'Callaghan* [1940]; *Goldman v Hargrave* [1967] and so on, discussed in **Chapter 19**, where an awareness of a danger on one's land has resulted in liability if the landowner fails to do something about it.
- ³⁴ See **section 11.2.2.3**.
- ³⁵ Compare Lord Hoffmann's opinion in *Tomlinson* with the majority of the Court of Appeal in *Scout Association v Barnes* [2010] discussed in **section 8.4.4**.

³⁶ Morgan **n3** 401.

³⁷ On the implications of **Tomlinson**, see Clare Dyer 'Hardy bathers win right to swim unsupervised' *The Guardian* 27 April 2005. It is worth noting, however, that the Court of Appeal in **Tomlinson** came to the opposite conclusion. It held not only that the council owed the claimant a duty of care but also that it was in breach of this duty—though it reduced the claimant's damages by two-thirds to reflect the extent to which he was contributorily negligent. Ward LJ noted:

Congleton Beach, as the place was also known, was as alluring to 'macho' young men as other dangerous places were to young children. In my judgment the gravity of the risk of injury, the frequency with which those using the park came to be exposed to the risk, the failure of warning signs to curtail the extent to which the risk was being run, indeed the very fact that the attractiveness of the beach and the lake acted as a magnet to draw so many into the cooling waters, all that leads me to the conclusion that the occupiers were reasonably to be expected to offer some protection against the risks of entering the water. It follows that in my judgment the defendants were under a duty to the [claimant] ... The authorities were inviting public use of this amenity knowing that the water was a siren call strong enough to turn stout men's minds. In my judgment the posting of notices, shown to be ineffective, was not enough to discharge the duty. (at [29], [31])

³⁸ Consider again the student injured when diving into a lake in the examples at the beginning of the chapter. What additional information would you need in order to determine which OLA to apply and advise them as to the potential outcome of their claim?

³⁹ Tony Weir *An Introduction to Tort Law* (2nd edn OUP 2006) 20.

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